

OH.5 Forms & Documents Index

Every document you will meet — what it is, when, and from where — plus the work Ohio exempts from approval outright.

Before you use this document

This is a process reference, not legal advice. Ohio writes one residential code for the whole state and applies it to your house by its own terms — and then, in that same code, excuses you from submitting plans, obtaining approvals, requesting inspections and getting a certificate of occupancy if no certified residential building department has jurisdiction over your parcel. What never depends on that is the code standard itself, the sewage treatment system permit, the private water system permit, and the contract and lien rules. Confirm every item with the office that will actually handle your parcel before you rely on it. Documents are named as the rules and statutes name them. Local form numbers change constantly and are deliberately absent.

THE DOCUMENTS THAT EXIST WHEREVER YOU BUILD

None of these depends on whether a building department is certified for your parcel. On a rural Ohio build this list is the whole of your paperwork.

State and county-level documents

Document	From whom	When, and what to watch
Soil evaluation report	A certified soil scientist, an equivalently registered soil professional, or the health district's own registered sanitarian (OAC 3701-29-07(A))	Before design. You may not produce this yourself
Sewage system design and site drawing	Your designer — no professional engineer required by Ohio rule	Must show both the system and the replacement area meeting every isolation distance, and the field staked on site
Sewage system installation permit	Local board of health	Before any installation work
Sewage system as-built drawing	Your registered installer, signed	After installation. Records any change in component locations and the distances to everything with an isolation requirement (OAC 3701-29-09(F)). Keep your copy

State and county-level documents

Document	From whom	When, and what to watch
Sewage system operation permit	Local board of health	Issued on approval of the installation. Term set by your board, capped at ten years — diarize the expiry
Private water system permit	Local board of health	Before drilling. The application includes a site plan showing distances to a long list of features
Water sample result	Laboratory, through the health district	The permit fee includes at least one sample
Well log / drilling report	Your driller files it with the Department of Natural Resources	Separate from the health district's permit — do not conflate the two. Ask your driller for a copy
Zoning certificate	Township, county or municipality	Where zoning has been adopted. Independent of the building code entirely
Lot line survey	A surveyor	Before any work if a building department has jurisdiction — and worth doing either way, since every setback you must meet is measured from a boundary
Driveway or access permit	Department of Transportation district, county engineer, or township trustees	Decided by which road you touch
Notice of Intent, construction stormwater	Ohio EPA, Division of Surface Water	Only at one acre of disturbance, or less inside a larger common plan of development
Utility locate ticket	Ohio 811	Before any excavation. Free

THE DOCUMENTS THAT EXIST ONLY IF SOMEBODY IS CERTIFIED

Every item below comes from a building department certified for residential buildings. Where none has jurisdiction over your parcel, none of these documents exists — and no state office can issue them to you instead.

Building-department documents, in the order you meet them

	Item	Date	Notes
☐	Residential construction documents — the plan set. No architect's or engineer's seal is required for a residential building (§ 3791.04(A)(2)(b)). Submitted _____		

Building-department documents, in the order you meet them

	Item	Date	Notes
☐	Certificate of plan approval. Ask for the required-inspection list at the same time — the code says the official shall give it to you when this issues. No. _____ Date _____		
☐	The required-inspection list for this project, drawn from RCO sections 108.2.1 to 108.2.12. Received _____		
☐	On-site inspection record — the inspector notes each satisfactory inspection on it. Keep it on site and keep it afterwards. Held by _____		
☐	Amended construction documents , if substantive changes are made after approval (RCO 106.3). Date _____		
☐	Conditional approval to proceed , if the department objects to part of the plans and the objection is an interpretation rather than a technical requirement (§ 3791.04(G)). Date _____		
☐	Extension requests — approval dies if work has not started within twelve months or is idle more than six months. Each extension must be requested at least ten days before expiry (§ 3791.04(C)). Requested _____ Granted _____		
☐	Certificate of occupancy. Only a certified department can issue it — not a third-party inspector (§ 3781.10(E)(15)). No. _____ Date _____		
☐	Adjudication order , if anything is denied — it must specify its reasons, and it starts your appeal clock. Date _____		

WHAT NEEDS NO APPROVAL AT ALL

The RCO lists this itself, and the list is worth keeping. Read the opening line carefully, because it is the part people forget: **exemption from approval is not exemption from the code.**

OAC 4101:8-1-01, RCO section 102.10 — the opening sentence

"Work exempt from approval. Approval shall not be required for the following work; **however, this work shall comply with all applicable provisions of the rules of the board.**"

RCO 102.10, Building — reproduced as the code lists it

	Work exempt from approval
1	One-story detached accessory structures used as tool and storage sheds, playhouses and similar uses, "provided the floor area does not exceed two hundred square feet ", and playground structures
2	Fences not over six feet high
3	Retaining walls not over four feet in height "measured from the bottom of the footing to the top of the wall, unless supporting a surcharge "
4	Water tanks supported directly on grade, capacity not over five thousand gallons , with a height-to-width ratio not over two to one
5	Sidewalks and driveways not more than thirty inches above grade, not over a basement or story below, and not part of an accessible route
6	"Painting, papering, tiling, carpeting, cabinets, counter tops and similar finish work"
7	Swings and other playground equipment accessory to a one-, two- or three-family dwelling
8	Window awnings supported by an exterior wall, projecting not more than fifty-four inches and needing no additional support
9	Decks — and all four conditions must hold: not exceeding 200 square feet , not more than thirty inches above grade at any point, not attached to a dwelling, and not serving the exit door required by section 311.2
10	Above-ground storage tanks as defined in the RCO's definitions chapter, and their foundations
11	Battery-operated smoke or carbon monoxide alarms installed in existing buildings where no construction is taking place

The deck test is the one to read twice. Four conditions, joined by "and" — fail any one and the deck needs approval. A 180-square-foot deck twenty inches off the ground that happens to be bolted to the house is not exempt, and neither is a free-standing one you step onto from the required exit door. **And note what exemption from approval does not do:** an exempt deck still has to meet the code's structural, guard and ledger provisions. Nobody checks — the requirement remains.

The same section carries shorter exempt lists for the trades. In outline: **Electrical** — cord-and-plug temporary decorative lighting, reinstalling attachment plug receptacles but not their outlets, replacing branch-circuit overcurrent devices of the same capacity and type in the

same location, wiring operating at less than twenty-five volts and incapable of supplying more than fifty watts, and minor repair work such as replacing lamps. **Gas and mechanical** — portable heating, cooking and clothes-drying appliances, portable ventilation and cooling equipment, and replacing any minor part that does not alter the equipment's approval or make it unsafe. **Plumbing** — repairing leaks, and clearing stoppages or repairing leaks in pipes, valves or fixtures including removing and reinstalling water closets, "provided such repairs do not involve or require the replacement of more than one fixture or rearrangement of valves, pipes or fixtures."

Three qualifications on that list

Replacing a defective concealed pipe is new work. The plumbing exemption says so in terms: if a concealed trap, drain, water, soil, waste or vent pipe "becomes defective and it becomes necessary to remove and replace the same with new material, such work **shall be considered as new work** and an approval shall be obtained and inspection made."

Emergency repairs are deferred, not excused. Where equipment replacement or repair must happen in an emergency, "an application for approval shall be submitted **within the next working business day**" (RCO 102.10.1).

"Minor repairs" has a hard boundary. RCO 102.10.2 allows minor repairs without application or notice, then excludes "the cutting away of any wall, partition or portion thereof, the removal or cutting of any structural beam or load bearing support, or the removal or change of any required means of egress" — and any addition, alteration, replacement or relocation of water supply, sewer, drainage, gas, soil, waste or vent piping, electric wiring, or mechanical work affecting public health or general safety.

One thing this list does not settle: a detached garage or pole barn larger than 200 square feet. Item 1 exempts detached accessory structures up to that size, while R.C. § 3781.06(C)(11) defines "accessory structure" as one "**attached to a residential building**" — a garage, porch or screened-in patio. The two texts do not obviously line up, and how a large detached outbuilding is treated is a question for your department, or for the agricultural exemption at § 3781.06(B)(1) if it genuinely serves a farm use. Ask before you order the trusses.

THE CONTRACT AND LIEN DOCUMENTS — THESE ARE YOURS NOW

On a normal build a general contractor generates these and an owner receives them. As your own general contractor, **nobody is going to hand them to you**. Every one below is either something Ohio law entitles you to demand, or something that protects you only if you create it.

Documents an owner-builder has to generate or demand

Document	From whom	Why it matters
Written home construction service contract	From each contractor on \$25,000 or more	Nine contents are mandatory, including a copy of their certificate of insurance showing at least \$250,000 general liability (§ 4722.02(A)). A cost-plus contract waives this requirement entirely

Documents an owner-builder has to generate or demand

Document	From whom	Why it matters
Change-order estimate	From the contractor	Required once unforeseen excess costs cumulatively exceed \$5,000. You elect written or oral notice by initialling a clause the statute scripts. Also waived by a cost-plus contract
Certificate of insurance	From every trade, before they start	General liability, and workers' compensation coverage for their own people. Verify it directly with the insurer rather than accepting a PDF
Contractor's affidavit that all below them are paid	From each direct contractor, before final payment	You may withhold payment until you get it, and your rights "shall not be prejudiced by" failing to ask (§ 1311.011(B)(6)). A lender must obtain one before paying an original contractor (B)(4)
Lien waivers and releases	From subs and suppliers	Joint checks to a contractor and their sub as a condition of release are expressly permitted, and a release given under the section is valid "without separate consideration" (§ 1311.011(B)(7), (B)(9))
Your own affidavit of full payment	Recorded by you with the county recorder	After paying a contractor in full, you may record an affidavit that you did — and a lien perfected after that payment "is void and the property wholly discharged" (§ 1311.011(B)(1))
Written notice demanding release of a stale lien	From you to the lienholder	Thirty days after that notice, a lienholder who has not released "is liable to the owner for all damages", including court costs and reasonable attorney fees (§ 1311.011(B)(3))
Notice of Commencement	Only if your lender requires it	Ohio does not require one for a home construction contract (§ 1311.04(O)). If you record one anyway because the lender asks, you gain the priority rules and your subs are relieved of the notice-of-furnishing duty

The deadline that decides everything. A lien affidavit on a one- or two-family dwelling must be filed with the county recorder "**within sixty days** from the date on which the last labor or work was performed or material was furnished" (§ 1311.06(B)(1)). Anything not described in that paragraph falls to **seventy-five days** under (B)(3) — which is where a **three-family** dwelling lands, because Chapter 1311 draws its residential line at one and two family while the rest of Ohio law draws it at three. Diarize sixty days from your last trade's final day, and do not close or refinance before it runs.

WHAT OHIO NEVER ASKS YOU FOR

These are negative findings — established by reading the statutes and rules and finding no such requirement, not inferred from silence elsewhere. If a guide or a salesperson tells you otherwise, ask them for the section number.

Requirements people expect to find in Ohio law, and do not

Commonly assumed	What the text actually shows
A state contractor license, for you or your trades	Ohio issues no general contractor license at all, and its five trade licenses reach only a "construction project", which excludes a one-, two-, or three-family dwelling. Your city or township may still require local registration
An owner-builder affidavit or exemption form	None exists at state level, because there is no state license to be exempt from. A certified local department may use its own
An architect's or engineer's seal	"No seal is required for any plans, drawings, specifications, or data submitted for approval for any residential buildings"
A holding period or a no-sale window	Ohio sets none. No annual cap on houses, no resale clawback — again because there is no licensing exemption whose conditions these would be
A Notice of Commencement	Not for a home construction contract. Your lender may want one anyway
A statewide minimum lot size for a septic system	Ohio's sewage rules set none. What constrains you is whether the system, the replacement area and every setback fit — and what your zoning and health district add
Whole-house surge protection	The 2023 National Electrical Code requires it; Ohio rewrote all three sections to apply only "where provided". Worth installing, not required

Everything cited here is free to read in one place. Ohio publishes both its statutes and its agency rules at codes.ohio.gov — the Revised Code (**R.C. § 3781.10**) under Ohio Revised Code, the Administrative Code (**OAC 4101:8-1-01, OAC 3701-29-06**) under Ohio Administrative Code. Both are searchable by number alone. **One warning about how the building code reads there:** the Board of Building Standards files its rules as PDFs of the amendment itself, so text that was deleted is struck through and text that was added is underlined, on the same line. Copy that line and the strikethrough vanishes — which is how a referenced standard reading "70—1723" gets quoted as "1723" or, worse, as the edition Ohio just replaced. Read the rule PDF with your eyes, not your clipboard. Read September 2026.